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Case Number: 25SMCV06645 Hearing Date: August 27, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

JEFFREY EDELL, et al.,

Plaintiff,

v.

BURNS & WILCOX, LIMITED, et al.,

Defendants.

Case No.: 25SMCV06645

Hearing Date: August 27, 2026

[TENTATIVE] order RE:

defendant WILDFIRE DEFENSE

SYSTEMS, INC.'S DEMURRER TO AND

MOTION TO STRIKE FIRST AMENDED

COMPLAINT

BACKGROUND

This case arises from property losses from the Palisades Wildfire. Plaintiffs Jeffrey Edell, Elaine Edell and the Edell Family Trust bought their home in Malibu, California in 2022, and lived there until the Palisades Wildfire. (First Amended Complaint (“FAC”) ¶ 17.) According to the First Amended Complaint, Plaintiffs understood that their home was in a high-risk wildfire area, so they obtained fire coverage through their insurance broker SAIG Insurance Solutions, Inc. (“SAIG”). (FAC ¶ 18.)

For the 2024-2025 policy year, SAIG, acting on Plaintiffs’ behalf, procured from Evanston Insurance Company a Difference-in-Conditions (“DIC”) insurance policy (the “Policy”). The Policy included, as a line item, the Wildfire Defense Program (“WDP”), a collaboration between (1) Defendants Burns & Wilcox, Limited and Burns & Wilcox Insurance Services, Inc. (collectively “the Burns & Wilcox Defendants”) and (2) Defendant Wildfire Defense Systems (“WDS”). (FAC ¶ 19.)

A central and material inducement for Plaintiffs to purchase this fire-exclusion policy was the simultaneous and “automatic[] enroll[ment]” in the Burns & Wilcox WDP, which was marketed and represented by Defendants as an “added layer of protection against losses due to wildfires.” (FAC ¶ 22.) The Policy documents that Plaintiffs received state: “By agreeing to purchase this policy, you are automatically enrolled in the Burns & Wilcox Wildfire Defense Program... and grant WDS and their representatives[sic] permission to access the property. ... If your home is threatened by an active wildfire, WDS professionals will attempt to go into the evacuation zone to help protect your home.” (emphasis added). (Id.) Plaintiffs paid a recurring line charge of \$85 for the Wildfire Defense Program, as part of their premium.

Plaintiffs relied on the Wildfire Defense Program to provide pre-loss physical mitigation of wildfire damage to the Property—distinct from, and not a substitute for, post loss insurance indemnity. The fire coverage Plaintiffs separately procured through the California FAIR Plan and State Farm addressed post-loss indemnity only and is fully consistent with Plaintiffs’ reliance on WDS to provide pre-loss physical wildfire-mitigation services to the Property as marketed. (FAC ¶ 33.)

This promise of proactive, on-the-ground fire mitigation services, to be provided by Defendant WDS, was a substantial and material factor in Plaintiffs’ decision to buy the Policy. In reliance on the WDS representation that Defendants would affirmatively deploy resources to protect their Property from wildfire damage, Plaintiffs paid the premiums for the Policy. (FAC ¶ 34.)

The promise of the Wildfire Defense Program (“WDP”) was not merely an ancillary benefit; it was a central and material component of Plaintiff’s decision to pursue the Policy. Defendants marketed the WDP as a proactive, on-the-ground fire mitigation service offering “extensive protection” designed to prevent property loss, a critical inducement for any homeowner purchasing a policy that, by its own terms, does not cover the peril of fire. (FAC ¶ 34.)

Defendants made specific and material representations about the nature of these “potentially home-saving services.” The Policy documents stated that WDS professionals “will determine the most appropriate methods to mitigate fire loss to the home, which could include but are not limited to, non-destructive measures such as brush removal, fuel source mitigation... Temporary sprinkler systems may be used... In situations of extreme threat, WDS may apply fire protection products to the property including fire blocking gel and fire retardant”. (FAC ¶ 37.)

Critically, Defendants represented that the WDP was an automatic and proactive service. The Policy’s marketing materials state that “WDS monitors wildfires... to determine if specific insured properties are, or will be, threatened” and that if a property is threatened, WDS will “respond to the home... to provide potentially home-saving services.” The materials assure the homeowner that “It is not necessary for you to contact Wildfire Defense Systems in the event of a wildfire,” confirming the automatic and proactive nature of the promised response. (FAC ¶ 38.)

WDS's marketing materials and representations created a false sense of security, leading Plaintiffs to forgo additional fire protection coverage they would have otherwise obtained. (FAC ¶ 62.)

On December 9, 2024, the Franklin Wildfire threatened Plaintiffs' home and was not contained until December 18, 2024. (FAC ¶¶ 44, 46.) In the nine days that the Franklin Wildfire was uncontained, WDS did not respond to the threat to Plaintiffs' Property, nor did WDS respond at any time following the Franklin Wildfire. (FAC ¶ 47.) WDS did not provide any of the services the WDP purported to offer, including, inter alia, brush removal, fuel source mitigation, closing of structural entryways, garage doors and windows, moving wood piles and debris away from the home, clearing gutters and roof debris, and extinguishing and monitoring hot spots to prevent flare-ups, as advertised in the marketing materials prominently featured in the Policy. (FAC ¶ 48.)

The Palisades Wildfire began on January 7, 2025. (FAC ¶ 54.) Nearly a full month elapsed between the Franklin Wildfire and the Palisades Wildfire. WDP had nearly a full month to provide the services that Defendant WDS had represented it would undertake. (FAC ¶ 51.) In the over twelve hours between the start of the Palisades Wildfire and when Plaintiffs were forced to evacuate, WDS did not provide, or attempt to provide, fire mitigation services to Plaintiffs' property. (FAC ¶ 56.) Plaintiffs' Property was far from the start of the Palisades Wildfire, and WDS had ample time to approach Plaintiffs' Property before the Palisades Wildfire became close to the Property. (FAC ¶ 57.)

When the Palisades Wildfire threatened Plaintiffs' Property, WDS did not deploy personnel, equipment, or mitigation efforts at any time for the protection of Plaintiffs' Property. (FAC ¶ 58.) As a result of the lack of WDS personnel, equipment, or mitigation efforts, Plaintiffs' Property was completely destroyed in the Palisades Wildfire. (FAC ¶ 59.)

The Complaint alleges on information and belief, that none of the Burns & Wilcox—enrolled WDP policyholders in the Pacific Palisades, Malibu, and adjacent fire-impacted areas who had paid the recurring "Wildfire Defense Service" charge, received a WDS telephone call, site visit, or deployment of wildfire defense services during the Palisades Wildfire on or about January 7, 2025. (FAC ¶ 32.)

After the Palisades Wildfire destroyed Plaintiffs' home, Plaintiffs made a claim under the Policy which was denied. Plaintiffs received no insurance payment under the Policy. (FAC ¶ 32.) Plaintiffs received only three million dollars (\$3,000,000) in primary fire coverage from the CFP for the loss of their Dwelling, \$3,000,000 from the CFP for Personal Property, and another \$600,000 for belongings from State Farm, for a total of \$6,600,000 in insurance recovery. (FAC ¶ 64.)

Plaintiffs estimate that the approximate fair market value of their home was between \$16 million dollars and \$20 million dollars. (FAC ¶ 66.) On information and belief, the approximate value of Plaintiffs' belongings at the Property at the time of its destruction was \$6,000,000. (FAC ¶ 67.)

Plaintiffs brought suit against Defendants, alleging nine claims for (1) breach of contract, (2) breach of the implied covenant of good faith and fair dealing, (3) violation of False Advertising Law (FAL), (4) violation of Consumer Legal Remedies Act (CLRA), (5) professional negligence, (6) fraudulent inducement, (7) fraud, (8) negligent misrepresentation, and (9) constructive fraud. As to WDS specifically, Plaintiffs' claims are for violation of the FAL, violation of the CLRA, professional negligence, fraudulent inducement and fraud.

This hearing is on WDS' demurrer to and motion to strike the FAC. WDS claims that the brochure attached to the original complaint (which was part of the Policy) defeats Plaintiffs' fraud and statutory claims because it warned that the wildfire protection services described therein were not guaranteed. WDS also moves to strike Plaintiffs' prayer for punitive damages because the allegations do not support a finding of malice, oppression or fraud.

MEET AND CONFER

Code Civ. Proc. §§ 430.41 and 435.5 requires that before the filing of a demurrer or motion to strike, the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41(a), 435.5(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41(a)(2), 435.5(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41(a)(3), 435.5(a)(3).) WDS submits the Declaration of Yuri Kolesnikov who attests he met and conferred with Plaintiffs’ counsel by videoconference. The conference resolved one of the issues raised in the demurrer – the naming of the Trust as a Plaintiff. The parties agreed that Plaintiffs would seek the Court’s permission to substitute the trustees of the Trust in place of the Trust. Otherwise, the parties could not resolve the issues raised in the demurrer and motion to strike.

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents).) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 (court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”); Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 (“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”); Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

DISCUSSION

WDS’s demurrer and motion to strike are procedurally defective. WDS was required to file the demurrer and motion to strike separately, under two different reservation numbers. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2012) ¶ 7:162:1, p. 7(l)-66.) A demurrer and motion to strike are two separate matters, requiring two separate filing fees. WDS’ failure to file the motions separately also meant that the Court could not properly manage its calendar and limit the number of matters to be heard in a single day. While this defect alone would not have precluded the Court from considering these separate motions, there are other procedural deficiencies with the filings.

The demurrer, as distinguished from the memorandum of points and authorities, must separately state each ground of demurrer: “Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.” (California Rules of Court, Rule § 3.1320(a).) WDS’ demurrer fails to comply with this rule as the notice portion of the demurrer does not state in a separate paragraph, each cause of action to which WDS is demurring and the basis for the demurrer as to that cause of action.

Additionally, a “notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (California Rules of Court, Rule 3.1322.” Here, WDS asks the Court to strike “Plaintiffs’ demand for punitive, treble and/or enhanced damages against WDS contained in Paragraphs 69, 146, 154, 160, 166 and 172 of the FAC and Paragraph 1 of the ‘Demand for Relief’ section of the FAC.” (Motion at 17:8-10 (emphasis added).) That is, WDS is not seeking to strike entire paragraphs, but specific sections of the paragraphs.

This is made clear by reading the paragraphs, which contain allegations unrelated to a punitive, treble or enhanced damages claim. For example, paragraph 172 states in full: “As a direct and proximate result of Plaintiffs’ reliance on these negligent misrepresentations, the promised WDP services were not rendered, and Plaintiffs’ Property was destroyed in the Palisades Wildfire on or about January 7, 2025, causing damages in an amount to be proven at trial but not less than twenty-one million, four hundred thousand dollars (\$21,400,000), less the \$6,600,000 in fire-coverage proceeds received from the California FAIR Plan and State Farm (Paragraph 64). The conduct of Defendant WDS also constitutes deceit under California Civil Code § 1710(2) (the assertion as a fact of that which is not true by one who has no reasonable ground for believing it to be true). In the alternative, because Plaintiffs Jeffrey and Elaine Edell were senior citizens at the time the cause of action accrued (Paragraph 3), and because WDS’s misrepresentations constitute deceptive acts within the meaning of California Civil Code § 3345, Plaintiffs seek trebled civil penalties pursuant to § 3345.”

This paragraph contains allegations unrelated to a claim for treble damages, including references to Plaintiffs’ alleged actual damages. Accordingly, under Rule 3.1322, WDS was required to quote in full the specific portions of the Complaint it is seeking to strike. Otherwise, Plaintiffs do not have proper notice of what is being sought to be stricken.

CONCLUSION AND ORDER

Based on the foregoing, the Court OVERRULES the demurrer and DENIES the motion to strike, without prejudice.

IT IS SO ORDERED.

DATED: August 27, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court